

## 25STCV14127 25STCV14127

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### RULING

Defendant's request for judicial notice is granted in full. The exhibits constitute court records and legislative documents. The Court will judicially notice the exhibits' existence.

Defendant's demurrer is sustained without leave to amend.

### BACKGROUND

Plaintiff's

action (25STCV14127) is part of the coordinated Southern California Clergy

Cases (JCCP 5101). He alleges that a

priest sexually abused him in the late 1970s when he was a minor. He claims Defendant failed to protect him despite having actual or constructive knowledge of the priest's pedophilia.

On

April 20, 2026, the Court denied RCALA's motion to dismiss for failure to prosecute.

On

June 17, 2026, the Court denied RCALA's motion for reconsideration.

Here,

RCALA demurs to the amended complaint, arguing that it is time-barred.

APPLICABLE

## LAW

### When

considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

## DISCUSSION

### Previous Rulings

Defendant moved to dismiss pursuant to Code of Civil Procedure sections 583.210 and 583.250 because Plaintiff failed to serve the summons and complaint within three years after commencement. (See 4/20/26 Minute Order, pp. 1-3.)

In opposition, Plaintiff made two arguments. First, he claimed service was timely under Code of Civil Procedure section 340.1(i) (he asserted that section 340.1(i) trumps sections 583.210 and 583.250).

Second, he claimed he was excused from meeting the three-year deadline in sections 583.210 and 583.250 because service “was impossible, impracticable, or futile due to causes beyond [his] control.” (Cal. Code Civ. Proc. § 583.240.)

The Court rejected both arguments yet denied the motion to dismiss on a separate ground. The Court found *Barrington v. A.H. Robins Co.* (1985) 39 Cal.3d 146 applicable. *Barrington* holds that, “where the ‘gravamen’ of the complaint is changed – i.e., amended to allege a new cause of action based on different operative facts – the period for service of summons runs from the date of the amendment.” (Edmon & Karnow, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2026) ¶ 11:61.1 [discussing *Barrington*], emphasis in original.) The Court

reasoned:

Defendant concedes that the amended complaint substitutes RCALA “as the true name of Doe 1[.]” (Motion, p. 1; see also Potts Decl., Ex. 2.) Strikingly, though, Doe 1 in the original complaint is a different entity than Doe 1 in the amended complaint. In the original complaint, Doe 1 is the San Diego Diocese:

2. Defendant Doe 1, Diocese (“Defendant Diocese”) is a corporation sole, authorized to conduct business and conducting business in the State of California, with its principal place of business in San Diego, California. Defendant Diocese has responsibility for some or all Roman Catholic Church operations in San Diego, California. Defendant Diocese is the Diocese in which the sexual abuse occurred.

(Potts Decl., Ex. 1, ¶ 2, emphasis added.) In the amended complaint, Doe 1 is RCALA:

2. Defendant ROMAN CATHOLIC ARCHBISHOP OF LOS ANGELES, a corporation Sole; (“Defendant Diocese”) is a corporation sole, authorized to conduct business and conducting business in the State of California, with its principal place of business in Los Angeles, California. Defendant Diocese has responsibility for some or all Roman Catholic Church operations in Los Angeles, California. Defendant Diocese is the Diocese in which the sexual abuse occurred.

(Id. at Ex. 2, ¶ 2, emphasis added.)

Substituting RCALA for a distinct entity from a distinct city with responsibility for distinct operations in a distinct area alters the facts and gravamen of the complaint. Plaintiff’s service is timely because “the period for service of summons runs from the date of the amendment.” (Edmon & Karnow, *supra*, at ¶ 11:61.1, emphasis in original.)

(4/20/26 Minute Order,  
pp. 6-7, emphasis in original.)

Subsequently, the Court denied Defendant's motion for reconsideration. Reiterating that Plaintiff substituted RCALA for Doe 1 and that the Doe 1 alleged in the original complaint was a different entity (the San Diego Diocese) than the Doe 1 alleged in the amended complaint (RCALA), the Court determined that application of the Barrington exception remained justified.

Demurrer

The following timeline is relevant:

\* 1965 – Plaintiff was born (see Amended Complaint, ¶ 1);

\* 1977/1978 – the priest allegedly molested Plaintiff (see id. at ¶ 7);

\* 1983 – Plaintiff turned 18 years old;

\* 1984 – Plaintiff turned 19 years old;

\* 2005 – Plaintiff turned 40 years old;

\* April 2022 – Plaintiff filed the original complaint;

\* June 2024 – Plaintiff filed the amended complaint.

“What matters is not what the limitations period is now [citation], but what it was at the time the [] claims against [RCALA] accrued.” (Doe v. RCALA (2016) 247 Cal.App.4th 953, 962, emphasis in original, footnote omitted.) The limitations period in 1977/1978 “was one year from . . . the time of the alleged abuse.” (Quarry v. Doe I (2012) 53 Cal.4th 945, 960-961; see also Doe, supra, 247 Cal.App.4th at 962.)

“For persons who were minors when the alleged abuse occurred, the limitations period was tolled until one year after the time the plaintiffs reached the age of majority, that is, until the age of 19.” (Quarry, supra, 53 Cal.4th at 961.)

This means Plaintiff's claims "lapsed in [1984] when he turned 19 years of age." (Ibid.)

The next question is whether Plaintiff's claims were ever revived. (See id. at 957 ["Once a claim has lapsed (under the formerly applicable statute of limitations), revival of the claim is seen as a retroactive application of the law under an enlarged statute of limitations. Lapsed claims will not be considered revived without express language of revival."].) The answer is yes. Defendant concedes that the Legislature amended Code of Civil Procedure section 340.1 in 2019, granting a three-year revival window from 2020 through 2023. (See Demurrer, p. 3 [discussing subdivision (q)]; see also Stats. 2019, c. 861 (A.B. 218), § 1, eff. Jan. 1, 2020.)

As noted above, Plaintiff filed the original complaint in April 2022. That filing was within the revival window.

However, to repeat, the original complaint described Doe 1 as the San Diego Diocese, not as RCALA. Plaintiff substituted RCALA for Doe 1 in the amended complaint in June 2024.

Defendant contends the amended complaint is time-barred since it was filed after the revival window closed. (See Demurrer, p. 3.)

Plaintiff insists that the amended complaint relates back to the original complaint. (See Opposition, pp. 7-9.)

Defendant disagrees. Because Doe 1 in the original complaint was the San Diego Diocese, Defendant claims relation-back relief is unavailable. (See Demurrer, p. 3.)

The Court turns to the law.

"An amended complaint relates back to the original complaint . . . if it: (1) rests on the same general set of facts as the original complaint; and (2) refers to the same accident and same injuries as the original

complaint.” (Barrington, *supra*,  
39 Cal.3d at 151.)

On the other hand, “[a]s a general rule, an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed[.]” (Hawkins v. Pacific Coast Building Products, Inc. (2004) 124 Cal.App.4th 1497, 1503.) Indeed, “[t]he straightforward rule is that amendment after the statute of limitations has run will not be permitted when the result is the addition of a party who, up to the time of the proposed amendment, was neither a named nor a fictitiously designated party to the proceeding.” (Ingram v. Superior Court (1979) 98 Cal.App.3d 483, 492; see also Banke & Segal, Cal. Practice Guide: Civ. Procedure Before Trial, Statutes of Limitations (The Rutter Group 2026) ¶ 8:112 [“Although a ‘mistake’ in defendant’s name may be corrected by amendment, due process forbids ‘relation back’ where the amended complaint is against a defendant not named in the original complaint or served as a ‘Doe’ defendant[.]”])

“But where an amendment does not add a ‘new’ defendant, but simply corrects a misnomer by which an ‘old’ defendant was sued, case law recognizes an exception to the general rule of no relation back.” (Hawkins, *supra*, 124 Cal.App.4th at 1503.)

“Similarly, ‘when a complaint is amended only to identify a party by its proper name, the gravamen of the complaint remains unaltered, and hence the later pleading relates back to the earlier pleading.’” (Banke & Segal, *supra*, at ¶ 8:110 [quoting Burgos v. Tamulonis (1994) 28 Cal.App.4th 757, 763], emphasis in original.)

In short,

[w]hether [a] plaintiff may amend the complaint after the statute of limitations has run to change a party’s description or characterization “depends on whether the misdescription or mischaracterization is merely a misnomer or defect in the description or characterization, or whether it is a substitution or entire change of parties. In the former case an amendment will be allowed; in the latter, it will not be allowed.”

(Id. at ¶ 8:120 [quoting Hawkins, supra, 124 Cal.App.4th at 1503].)

Given these rules, the Court agrees with Defendant. The San Diego Diocese and RCALA are “distinct entit[ies] from [] distinct cit[ies] with responsibilit[ies] for distinct operations in [] distinct area[s.]” (4/20/26 Minute Order, p. 7.) By substituting RCALA for Doe 1 – i.e., for the San Diego Diocese – Plaintiff did more than just fix a misnomer; he named a new party. This fact renders Plaintiff’s authorities, primarily, *Austin v. Massachusetts Bonding & Insurance Co.* (1961) 56 Cal.2d 596, distinguishable. Thus, the relation-back doctrine does not apply.

The final issue concerns Code of Civil Procedure section 340.11. Section 340.11 became effective on January 1, 2024. It covers claims for pre-January 2024 “childhood sexual assault[.]” (Edmon & Karnow, supra, at ¶ 1:912.) Such claims “may be brought within 22 years after the plaintiff becomes an adult [– i.e., 40 years old –] or five years after plaintiff discovers (or reasonably should have discovered) that an injury or illness suffered as an adult was caused by childhood sexual assault, whichever is later.” (Ibid.; see also Cal. Code Civ. Proc. § 340.11, subd. (a)(1).) Also, the statute establishes a three-year revival window from January 1, 2020 to the end of 2023. (See Cal. Code Civ. Proc. § 340.11, subd. (q).)

Plaintiff

fails to satisfy each of these options.

He filed the original complaint and the amended complaint when he was in his late 50s; he fails to allege delayed discovery; and, for the reasons already stated, he cannot rely on the filing of the original complaint during the revival period to make the amended complaint timely.

Moreover,

because his claims were lapsed when section 340.11 took effect, he cannot invoke subdivision (a)(1), the delayed-discovery subdivision. “[L]egislative enlargement of a limitations period does not revive lapsed claims in the absence of express language of revival.”

(Quarry, supra, 53 Cal.4th at 955.) Subdivision (a)(1) does not contain revival wording; the revival wording in subdivision (q) refers to the 2020-through-2023

revival window; and subdivision (r), at best, is ambiguous, requiring it to be construed prospectively. (See Demurrer, pp. 4-7; see also Quarry, supra, 53 Cal.4th at 955; Request for Judicial Notice, Ex. 1, pp. 1-2 [attaching 5/1/26 Order of Dismissal with Prejudice and Sustaining Demurrers without Leave to Amend].)

Consequently,  
the amended complaint is untimely. The  
Court sustains the demurrer without leave to amend.